

23AHCV01968 23AHCV01968

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-21
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Case Number: 23AHCV01968 Hearing Date: August 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

RAUL HERNANDEZ,

Plaintiff(s),

vs.

ARYH
INDUSTRIES, LLC,

Defendant(s).

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CASE NO.: 23AHCV01968

ORDER

RE: APPLICATION

FOR DEFAULT JUDGMENT

Dept.

3

8:30

a.m.

August

21, 2026

)

Plaintiff Raul Hernandez ("Plaintiff")

seeks a default judgment against defendants Aryh Industries, LLC, Aryh Portable Restrooms, LLC, and Misael Hernandez-Delgado (collectively, "Defendants"). On February 27, 2026, the Court noted that the statement of damages was not properly served on any of the Defendants and vacated the default improperly entered against them.

On June 9, 2026, Plaintiff filed a proof

of service purporting to show that the statement of damages was served on Aryh Portable Restrooms, LLC. The proof of service shows that the documents were left with an agent, but there is no declaration of mailing. Thus, the Court cannot find that the statement of damages was appropriately served via

substituted service on Aryh Portable Restrooms, LLC.

Then, on August 13, 2026, Plaintiff filed "proof of personal service" of the statement of damages on Misael Hernandez-Delgado. But there was no personal service effected, rather, the statement of damages was left with "Kevin H., Owner Postal Service." There is no declaration of reasonable diligence showing that personal service was attempted or a statement that the address served is a private mailbox. (See Code Civ. Proc., § 415.20.)

There is also no proof of service showing that the statement of damages was served on Aryh Industries, LLC.

However, even if Plaintiff had properly served Defendants with the statement of damages, Plaintiff's declaration, filed on February 6, 2026, is insufficient to substantiate Plaintiff's request for \$160,000 in damages. First, the declaration refers to Exhibits 1 and 2 attached to a Brief Summary of the Case, even though no such summary is in the Court's record; Plaintiff submits no evidence supporting his special damages. Second, Plaintiff's declaration is entirely conclusory and contains no description about the treatment he received, the injuries he sustained, or the extent of any pain and suffering or emotional distress he suffered.

Accordingly, since the statement of damages has not yet been properly served on any of the Defendants, the Court VACATES the default that was improperly entered on June 22, 2026 and sets an OSC re: entry of default for _____ at 8:30 a.m. in Department 3 of the Alhambra Courthouse.

Dated
this 21st
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating

intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.